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Before the
FEDERAL MARITIME COMMISSION

Petition No. P3-99

PETITION OF CHINA OCEAN SHIPPING (GROUP) COMPANY
FOR A PARTIAL EXEMPTION FROM THE CONTROLLED CARRIER ACT

REQUEST OF SEA-LAND SERVICE, INC. AND AMERICAN PRESIDENT LINES,
LTD. FOR EXTENSION OF TIME FOR REPLIES TO PETITION

FILING OF
THE NATIONAL INDUSTRIAL TRANSPORTATION LEAGUE
IN SUPPORT OF THE ADDITIONAL REQUEST FOR EXTENSION OF TIME

On March 31, 1999, China Ocean Shipping (Group) Company ("COSCO") filed a petition with the Federal Maritime Commission requesting an exemption from the provisions of the Controlled Carrier Act (Section 9 of the Shipping Act of 1984, as amended by the Ocean Shipping Reform Act of 1998, 46 U.S.C. App. § 1708), that require COSCO to provide 30 days notice of rate decreases that are published in its tariff. The exemption, if granted, would permit rate decreases that are published by COSCO in a tariff to become effective upon publication.

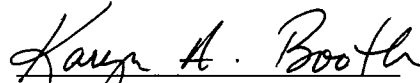
On April 30, 1999, the U.S. flag carriers, Sea-Land Service, Inc. ("Sea-Land") and American President Lines, Ltd. ("APL"), requested that the Commission extend the time period for filing replies to COSCO's Petition by 90 days. The carriers contended that COSCO's Petition could not be adequately evaluated during the time provided for filing replies, given the uncertainty surrounding current regulatory proposals in China, to which Sea-Land and APL would be subject, and which appear to be in direct conflict with COSCO's request for rate flexibility. In response to the carriers' request, the Commission granted a 60 day extension, thereby requiring that replies to COSCO's petition be filed by July 6, 1999.

The League understands that Sea-Land and APL filed on July 2, 1999 another request to extend the time period for filing replies to COSCO's Petition for an additional 60 days. The carriers again claim that uncertainty surrounding China's own regulatory proposals and the conflict between such proposals and the relief requested by COSCO render it virtually impossible to fully assess COSCO's Petition.

The League agrees that an additional extension should be granted. The League remains concerned over the pending regulatory proposals of China which would significantly alter shipping arrangements between China and the U.S., as well as other nations. Providing an additional period of time to reply to COSCO's Petition provides an opportunity for clarification of the status of China's regulatory proposals and will enable shippers to better evaluate the impact of COSCO's Petition.

Respectfully submitted,

THE NATIONAL INDUSTRIAL
TRANSPORTATION LEAGUE
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Attorneys for

The National Industrial Transportation League

Dated: July 6, 1999

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing Filing of The National Industrial Transportation League In Support of the Additional Request for Extension of Time has been served by first-class mail and by facsimile on Petitioner's counsel at the following address:

Richard D. Gluck, Esquire
Garvey, Schubert & Barer
1000 Potomac Street, N.W.
Washington, D.C. 20007



Michelle J. Nolder

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From: Richard Gluck <RGluck@gsblaw.com>
To: "ronaldm@fmc.gov" <ronaldm@fmc.gov>
Date: Tue, Jul 6, 1999 2:32 PM
Subject: Extension Request, FMC Docket No P3-99

Ronald Murphy
Assistant Secretary
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573

Re: FMC Docket No. P3-99:

Request of Sea-Land Service, Inc. and American
President Lines, Ltd. for Extension of Time for Replies to Petition

Dear Mr. Murphy:

With regard to your request for confirmation of COSCO's position on the above referenced extension request, we have been instructed to convey COSCO's response as follows: although COSCO would prefer a prompt FMC decision on its petition, COSCO will not openly oppose the requested extension.

Very

truly yours,

GARVEY, SCHUBERT & BARER

Richard D. Gluck

Attorneys for China Ocean Shipping (Group) Company